



**STAFF REPORT
26-067PD**

DATE: September 10, 2026

TO: Chair Alyea & Members
City of Quinte West Planning Advisory Committee

FROM: Katie Whitehead, B.E.S., RPP, MCIP
Area Planner

SUBJECT: **Planning Report / Analysis – Zoning By-law Application**
File No: D09/T09/26
Address: 7 Riverside Drive
Legal: Part Lot 1 Concession 2 Part 5, 21R8907, Parts 1 And 3,
21R5254 And Parts 4 And 5 21R541 Except Part 2 & 4,
21R5254; S/T QR221514
Ward: Trenton
Owners: 1813239 Ontario Inc. (Fred Fazili)
Agent: Shawn Bouchard

Recommendation

That the Committee recommends that Application D09/T09/26 to amend the City of Quinte West Zoning By-law on land owned by 1813239 Ontario Inc. (Fred Fazili), located at 7 Riverside Drive, legally described as Part Lot 1 Concession 2 Part 5, 21R8907, Parts 1 And 3, 21R5254 And Parts 4 And 5 21R541 Except Part 2 & 4, 21R5254; S/T QR221514, in the former City of Trenton, from the Service Industrial (SM) Zone to the Service Industrial Exception 14 (SM-14) Zone, be **APPROVED**.

1.0 Background

The statutory public meeting for application D09/T09/26 was held on June 18, 2026. The purpose of this application is to rezone the subject lands from the Service Industrial (SM) Zone to the Service Industrial Exception 14 (SM-14) Zone, in order to permit a

data centre on the subject property. In addition, this application also proposes to add the definition of a 'data centre' to the City of Quinte West Zoning By-law as the use is not currently captured in the Zoning By-law.

Given that data centres are a new use to the City of Quinte West, Staff Report #26-038PD prepared for the June Planning Advisory Committee meeting was provided to the Committee for information purposes only, and did not include a recommendation on the application. This was done in order to provide an opportunity to receive comments on the proposed use from members of the public as well as members of the Committee.

Ultimately, the intent of this Staff Report is to provide supplementary information following the statutory public meeting, along with a formal recommendation on the application. Staff Report #26-038PD is provided in Appendix 'I' for the Committee's consideration. Further, Staff Report #25-038PD outlines all comments received from various agencies and City Departments, and discusses applicable Planning policies.

Schedule 'A' attached hereto shows the location of the subject lands. Schedule 'B' is a preliminary concept plan.

2.0 Public Comments

The statutory public meeting for this application was held on June 18, 2026 and notice of application D09/T09/26 was circulated to all registered owners of land within 120 metres (400 feet) of the subject property and notice of the application was posted on the subject property on May 29, 2026.

As outlined in Staff Report #26-038PD, Planning staff did not receive any comments ahead of the public meeting. However, two members of the public attended the public meeting on June 18, 2026. Both individuals expressed their concerns about the data centre's potential impact on the natural environment, noise generation, and overall safety and security of the facility. In addition, one of the members of the public questioned how a data centre fits with Quinte West's identity as a "Natural Attraction."

Following the public meeting, staff have received correspondence from fifteen (15) members of the public, all of which indicated their objection to the proposed rezoning. Similar to the individuals who attended the public meeting in-person, the comments received were primarily related to noise, safety and security, water usage, traffic generation, hydro demands, environmental impacts, and long-term impacts on human health and quality of life.

3.0 Supplemental Planning Analysis/Conclusion

Ultimately the Zoning By-law Amendment application has been submitted in order to facilitate the re-use of the existing industrial building at 7 Riverside Drive for a data centre. In addition, this application also proposes to add a new definition to the City of Quinte West Zoning By-law for a data centre. It is recognized that the City's current Zoning By-law was adopted in 2014, and at that time data centres were not prevalent.

The establishment of new data centres in communities across Canada has prompted discussions around their long-term environmental and community impacts. Based on staff's research, along with the public comments received to date, it appears that the primary concerns related to data centres pertain to operational noise, particularly from cooling systems and backup generators; water usage associated with certain cooling technologies; and the large amounts of electricity required to power and maintain the facilities.

In addition to the concerns outlined above, during the public meeting, the Committee identified two other matters that they requested further clarification on. The first item being whether a Risk Management Plan would be required, while the second was related to the comments received from Lower Trent. In regard to the Risk Management Plan, the subject property is located within the Source Water Protection Zone, and as such City staff determined that a Risk Management Plan was required in order to ensure the proposed land use is conducted in a manner that is protective of the municipal drinking water source. To that end, the agent had prepared a Risk Management Plan, and submitted it to staff for approval. A notice provided to the Planning Department dated July 9, 2026 indicates that Matt Tracey, the City's Risk Management Official, has signed off on the Risk Management Plan prepared for the site.

Comments received from Lower Trent Conservation Authority dated June 8, 2026 state that Lower Trent is not in a position to support the application based on the submission materials provided as the application is not consistent with *Policy 5.2* of the Provincial Planning Statement. The extent of the floodway has not been confirmed on site by an Ontario Land Surveyor (OLS). LTC requires a topographic base plan of the subject property if the applicant wishes to proceed with technical work to determine if the proposal is able to demonstrate consistency with the natural hazard policies of the PPS. Further engineering work related to the Glen Miller Creek floodplain may subsequently be required. Further technical information would also be required for LTC to review whether the proposal is able to conform with all other regulatory requirements.

Following the public meeting, the agent had a topographic base plan completed by IBW Surveyors, as well as two floodplain reports prepared by Jewell Engineering and Envision Consultants Ltd. This information is currently with LTC staff for their review against their regulations and policies. At the time of writing this report formal comments on the additional supporting materials have not yet been provided. Although, it is important to note that should LTC have further technical comments that there is the ability to address them through the Site Plan Control stage, should the Committee and Council decide to approve this rezoning application.

In terms of addressing concerns about water usage, the owner's agent has indicated that they intend to utilize a dry cooling system on-site, rather than using water to cool the data centre. Dry cooling systems use ambient air, fans, and dry coolers (essentially large radiators-chillers) in a closed-loop system to dissipate heat. Dry cooling systems are generally preferred in more modern data centres.

As for the concerns about the data centre's demand for electricity, the owner's agent has been in contact with Hydro One to discuss the existing electrical grid's capacity. As noted in Staff Report 26-038PD, an email from Hydro One dated April 24, 2026 provided by the agent, Shawn Bouchard, indicates that Hydro One has assigned the proposed facility a capacity of 8,000 kW.

The potential for constant noise being generated by the data centre is another pressing matter that has been raised by several members of the public. As detailed in Staff Report 26-038PD, the proponent submitted a noise assessment prepared by BLK Consultants Ltd., dated May 14, 2026. However, Planning staff identified that residences located on Glen Miller Road were not captured in the noise assessment and as such staff requested that the applicant have the study updated to ensure that these residences were considered.

To that end, the updated noise impact assessment was completed by HGC Noise and Vibration Acoustics, and is dated August 4, 2026. The assessment was completed by HGC based on the preliminary site plan, sound emission levels provided by the equipment manufacturers, aerial imagery, information pertaining to operational hours, and a site visit completed by HGC staff in July of 2026.

The study completed by HGC indicates that a computational acoustical model of the facility and surrounding area was developed in order to predict the sound levels at the nearby points of reception. Furthermore, the study assumes that all onsite equipment operates simultaneously and continuously.

The study has identified the existing dwellings on Glen Miller Road, north of Rona, as well as dwellings across the Trent River as being the nearest and most potentially impacted sound sensitive points of reception. Furthermore, five key assessment locations were chosen to represent the sound sensitive points of reception in the vicinity of the facility, and are referred to as locations R1 through R5. The study states that location R1 represents the upper storey window of an existing, elevated single-storey single-detached dwelling to the northeast of the site, locations R2, R4 and R5 represent main floor windows of single-storey single-detached dwellings, while R3 represents the upper storey window of a two-storey single-detached dwelling, all of which are located to the northwest of the site.

The study includes an assessment of the noise impact anticipated at the nearest and most potentially impacted sound sensitive points of reception, in accordance with the assessment methods and evaluation procedures contained in the Ministry of Environment, Conservation and Parks (MECP) guideline NPC-300, "Environmental Noise Guideline Stationary and Transportation Sources - Approval and Planning." The MECP guideline is used for investigating land use compatibility issues with regard to noise, and for establishing applicable sound level limits at surrounding sensitive points of reception. An industrial or commercial facility such as a data centre is classified in the MECP guidelines as a stationary source of sound for noise assessment purposes. Based on the existing acoustical environment, the subject site is best categorized as a Class 1 (urban) Area, with background sound characteristically dominated by road traffic on Highway 401, as well as Glen Miller Road.

The MECP guidelines stipulate that the sound level impact during a "predictable worst-case hour" be considered, which is defined as an hour when a typically busy "planned and predictable mode of operation" occurs at the subject facility, coincides with a period of minimal background sound, which was considered as part of the study. Furthermore, the study highlights the fact that some types of sound have a special quality which may tend to increase their audibility and potential for disturbance or annoyance.

For tonal sounds, MECP guideline NPC-104 "Sound Level Adjustments" stipulates that an adjustment of +5 dBA is to be added to the measured source level. The study defines a tonal sound as one which has a pronounced audible tonal quality such as a whine, screech, buzz or hum. The study indicates that appropriate adjustments have been applied to tonal sources. A table from the study is shown below that demonstrates the sound level predications at the various points of reception.

Table 2: Sound Level Predictions, L_{eq} [dBA]

Source	Point of Reception				
	R1	R2	R3	R4	R5
Sum of Nine Generators	44	36	37	36	35
Sum of Eleven Chillers	39	32	34	32	31
Transformer	22	16	19	16	16
Total of All Sources	45	38	39	37	37
MECP Assessment Criteria (Day-Evening / Night)	50 / 45	50 / 45	50 / 45	50 / 45	50 / 45
Within Criteria?	Yes	Yes	Yes	Yes	Yes

Overall, the study concludes that the predicted sound levels are within the MECP assessment criteria given the proposed site layout, and equipment sound levels considered.

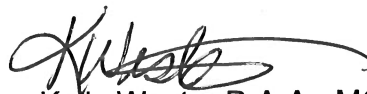
From a land use compatibility perspective, the subject site appears to be generally well-suited for the proposed use given the industrial nature of the area along Riverside Drive, and the separation between the nearest residential uses. However, this Zoning By-law Amendment is only the first step in the development process. If this application were to be approved by the Committee and Council, the next step would be the submission of a Site Plan Control application, in which the technical components of the development would be reviewed in greater detail.

Report written by,



Katie Whitehead, B.E.S., RPP, MCIP
Area Planner

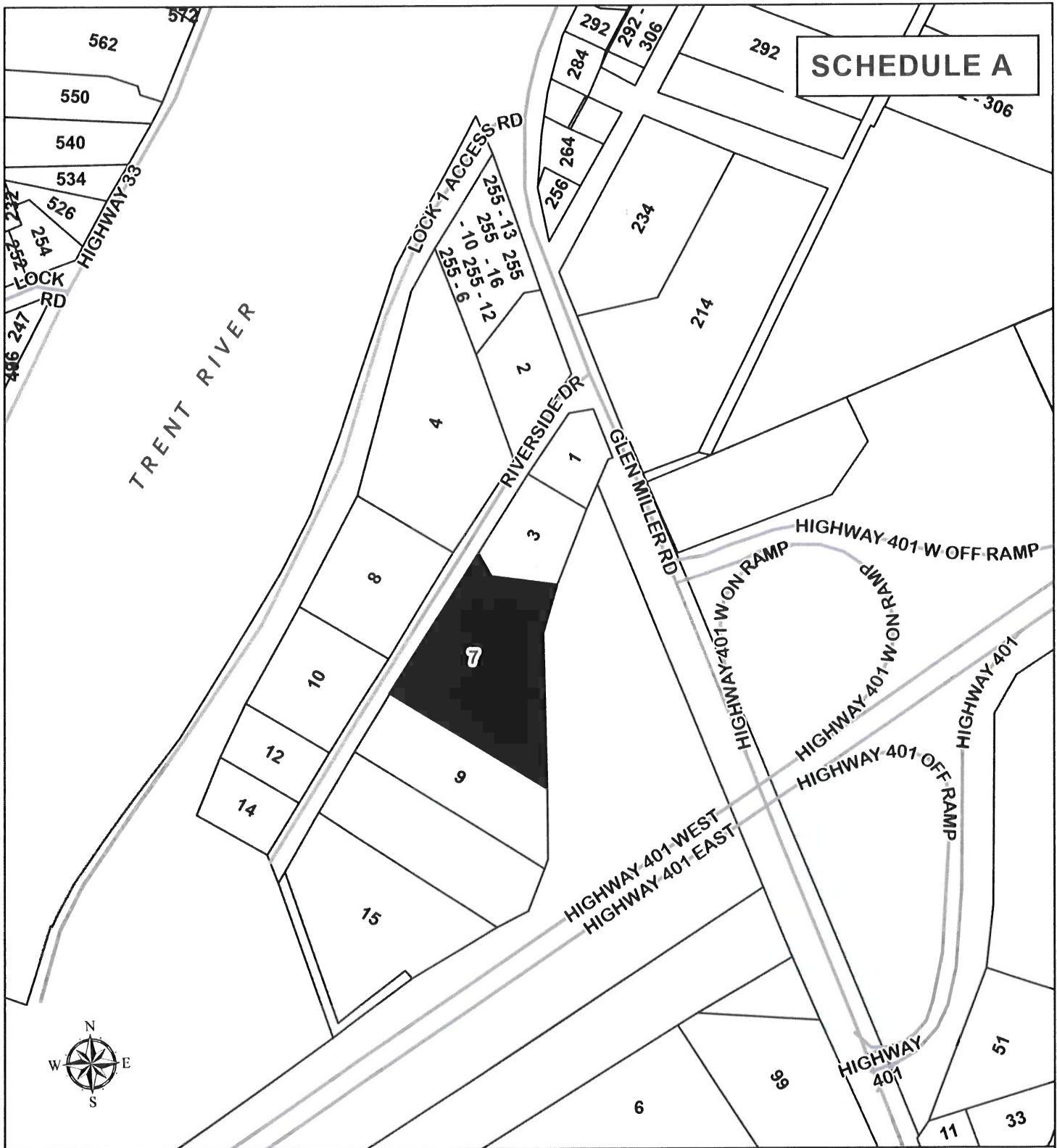
Report reviewed by,



Kelly Weste, B.A.A., MCIP, RPP
Manager of Planning Services

Appendices/Attachments:

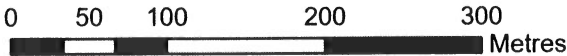
1. Schedule 'A'
2. Schedule 'B' Concept Plan/Preliminary Site Plan
3. Appendix 'I' Staff Report 26-038PD



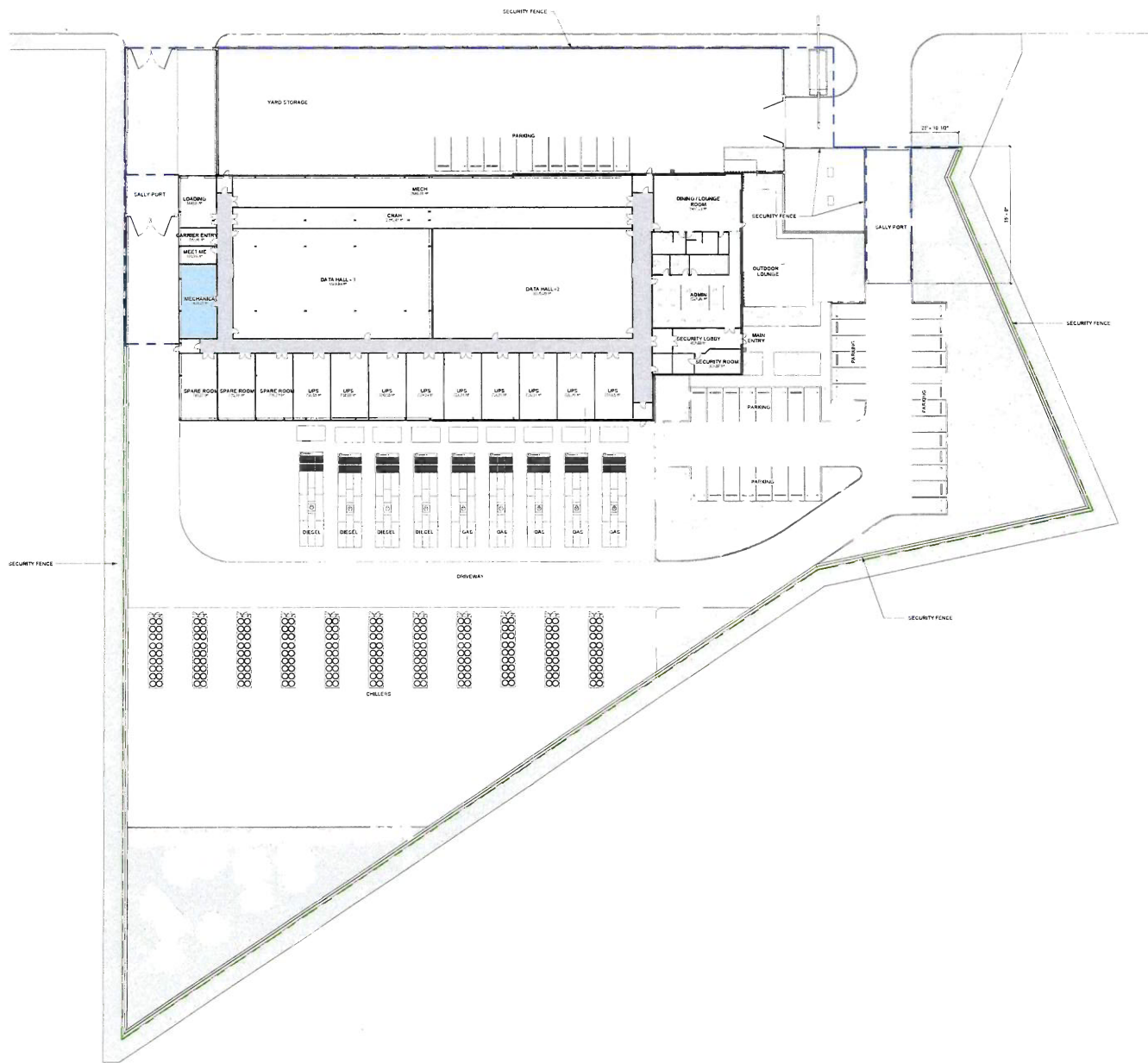
SCHEDULE A



Rezone to Service Industrial Exception 14 (SM-14) Zone



Zoning By-Law Amendment
 File:D09/T09/26
 7 Riverside Drive
 PT LT 1 CON 2 PT 5,
 21R8907, PARTS 1 AND 3,
 21R5254; PARTS 4 AND 5
 21R2541 EXCEPT PT 2; 4, 21R5254;
 S/T QR221514
 Geographic City of Trenton
 City of Quinte West





APPENDIX I

STAFF REPORT 26-038PD

DATE: June 8, 2026

TO: Chair Alyea & Members
City of Quinte West Planning Advisory Committee

FROM: Katie Whitehead
Area Planner

SUBJECT: **Planning Report / Analysis – Zoning By-law Application**
File No: D09/T09/26
Address: 7 Riverside Drive
Legal: Part Lot 1 Concession 2 Part 5, 21R8907, Parts 1 And 3,
21R5254 And Parts 4 And 5 21R541 Except Part 2 & 4,
21R5254; S/T QR221514
Ward: Trenton
Owners: 1813239 Ontario Inc. (Fred Fazili)
Agent: Shawn Bouchard

1.0 Background

Application D09/T09/26 proposes to amend the City of Quinte West Zoning By-law and applies to lands owned by 1813239 Ontario Inc. (Fred Fazili), located 7 Riverside Drive. The purpose of this application is to rezone the subject lands from the Service Industrial (SM) Zone to the Service Industrial Exception 14 (SM-14) Zone, in order to permit a data centre on the subject property. In addition, this application also proposes to add the definition of a 'data centre' to the City of Quinte West Zoning By-law as the use is not currently captured in the Zoning By-law.

The applicant has indicated that they intend to renovate the existing building on-site to be used as a data centre, and that back-up generators as well as chillers would be added to the subject property. The applicant has noted in their application that at buildout, the site would provide approximately 14 full time jobs.

In recent years, the Ontario government has taken steps to prioritize electricity for data centres that support the province's economic interests, including those that create high-quality jobs, assist in domestic data hosting and strengthen Ontario's position in the digital economy. More specifically, in June of 2025, the Province introduced Bill 40 *Protect Ontario by Securing Affordable Energy for Generations Act, 2025*, which focuses primarily on the development of data centres.

Schedule 'A' attached hereto shows the location of the subject lands. Schedule 'B' is a preliminary concept plan.

1.1 Site Characteristics

The subject property is situated in Trenton Ward with frontage on Riverside Drive. The subject property is located north of the Highway 401 corridor and less than 200 metres from Glen Miller Road. The subject property is currently developed with an existing industrial building, previously utilized by Saputo.

The subject property is located within the Source Water Protection Zone, and is impacted by both the Trent River and the Glen Miller Creek floodplains.

1.2 Adjacent Land Uses

The subject property is located within an established industrial-commercial node, situated along Riverside Drive, immediately north of Highway 401, in the north eastern section of the Trenton urban area.

Land use in the immediate vicinity consists primarily of industrial properties, with commercial land uses situated further to the south along the Sidney Street and Monogram Place corridor. The area benefits from full municipal infrastructure, including municipal water and sewer services.

2.0 Existing Policy

2.1 Provincial Planning Statement, 2024

The Provincial Planning Statement, 2024 provides policy direction on matters of provincial interest related to land use planning and development. The Provincial Planning Statement is a key part of Ontario's planning system and sets the policy foundation for regulating the development and use of land.

The subject property is located in the "Trenton Urban Service Area." Reference is made to *Section 2.3.1 Settlement Areas* of the PPS. More specifically, *Section 2.3.1.1* states that settlement areas shall be the focus of growth and development.

Section 3.5.1 of the PPS states major facilities and sensitive land uses shall be planned and developed to avoid, or if avoidance is not possible, minimize and mitigate any potential adverse effects from odour, noise and other contaminants, minimize risk to public health and safety, and to ensure the long-term operational and economic viability of major facilities in accordance with provincial guidelines, standards and procedures.

Section 3.5.2 further states where avoidance is not possible in accordance with policy *3.5.1*, planning authorities shall protect the long-term viability of existing or planned industrial, manufacturing or other major facilities that are vulnerable to encroachment by ensuring that the planning and development of proposed adjacent sensitive land uses is only permitted if potential adverse affects to the proposed sensitive land use are minimized and mitigated, and potential impacts to industrial, manufacturing or other major facilities are minimized and mitigated in accordance with provincial guidelines, standards and procedures.

2.2 Official Plan

The subject property is within Planning District 2A of the Trenton Urban Service Area. Planning District 2 represents one of the major industrial/commercial employment areas of the Trenton Urban Service Area and the City. The primary objective in the area is to ensure that development within the district is sensitive to environmental impacts while at the same time providing long term economic stability to the City. This District has been separated into two Sub-districts in order to identify the areas where commercial uses are permitted. Industrial uses are encouraged in all the subdistricts, in accordance with the policies in *Section 5.8.2*.

Planning District 2A policies require that industrial uses north of the Canadian National Railway develop in such a manner to protect the Glen Miller Creek Floodplain and Mudcat Pond hazard lands in the area. Planning District 2A policies further state that the City should encourage service commercial and service industrial uses in accordance with *Section 5.8.2* with no associated outdoor storage on land with Highway 401 exposure, and that developments in proximity to a provincial highway are subject to a review by MTO.

Section 5.8.2 of the Official Plan pertains to industrial employment areas. Industrial Employment areas are generally located where considered appropriate for industrial

uses, and may have constraints that preclude other forms of development and/or have potential for minimizing land use conflicts. It is intended for these lands to be protected through designation for future industrial use, to ensure future industrial opportunities for the City. Under *Section 5.8.2.3* permitted uses include:

(iii) service industrial uses such as service and repair operations, research and development facilities, computer and data processing, laboratories, motor vehicle service uses, and commercial self-storage.

2.3 Zoning By-law

The subject property is zoned Service Industrial (SM) with an Environmentally Sensitive Area (ESA) overlay on Schedule 'B' of City of Quinte West Zoning By-law 14-86. The Service Industrial (SM) Zone permits a range of uses including but not limited to a banquet hall, a motor vehicle repair garage, a research and development use, a veterinary clinic and a repair shop.

The purpose of this application is to allow for a data centre which is not considered in the City of Quinte West's current Zoning By-law. This rezoning application proposes to place the subject property into the Service Industrial Exception 14 (SM-14) Zone which would allow for a data centre, as well as all of the other permitted uses under the standard Service Industrial (SM) Zone. In addition, this application also proposes to add the definition of a data centre to the Zoning By-law to ensure the use is captured appropriately.

The proposed definition is "a 'data processing centre' shall mean a building, structure or series of structures on a property, used to house computer systems and associated components of a group of networked servers typically used for remote storage, processing, or distribution of data, and includes accessory structures and infrastructure necessary to support the use."

The Environmentally Sensitive Area (ESA) is to remain unchanged as a result of this application.

3.0 Internal / External Consultation

3.1 Internal Department Circulation

Notice of Application D09/T09/26 was circulated to the following City Departments for comment on May 15, 2026.

- I. City Clerk,
- II. Fire Chief, Quinte West Fire & Emergency Services,
- III. Chief Building Official,
- IV. Manager of Economic Development,
- V. Director of Finance,
- VI. Risk Management Official,
- VII. Project & Development Coordinator, Public Works Department

Comments received from the Senior Fire Prevention Officer dated May 21, 2026 indicate no questions or concerns at this time.

Comments received from the Chief Building Official dated May 29, 2026 state that a building permit is required for the proposal alterations to the building, and source water protection approval is required. The Building Division will review the submitted permit package for compliance with the Building Code Act and the building code.

Comments received from John Finch, the acting Supervisor of Development Services, dated June 2, 2026 indicate that before Public Works can support a change to the zoning that approximate water and sanitary demands must be provided. In addition, Public Works would require the proponent to go through the site plan control process.

Comments from the Manager of Economic Development dated June 5, 2026 state:

"The data centre industry has been new to the region over the last few months. From an economic development perspective, data centres offer fewer jobs, but they often offer high-quality, higher-wage positions. Regarding 7 Riverside Drive, the site has remained underutilized since the plant's closure. Although interest has been expressed by dairy companies, a registered covenant held by the former owner continues to prohibit dairy processing on the property which has made it challenging to recruit a company to set up its operations at the facility.

While data centres could bring upfront construction value and municipal tax revenue, their high energy and water demands must be balanced against their relatively small ongoing employment footprint compared to more traditional industrial projects. The City's Economic Development team wants to ensure that the City fosters a competitive digital economy while protecting its infrastructure capacity for future growth. Consequently, economic development staff are engaging with provincial and national associations to gather insights, reports and connections to communities that may have successfully managed data centre developments."

Comments received from Josh Miller, Quality Management Technician, dated June 8, 2026 state there are no issues with regard to the intended use of the property, specifically the handling and/or storage of liquid fuel based on what has been presented to date. A Risk Management Plan may be required in the future if the proponent decides to handle and/or store over 2,500L of liquid fuel.

To date, no further internal comments have been received regarding this application.

3.2 External Agency Circulation

Notice of Application D09/T09/26 was circulated to the following external agencies on May 15, 2026.

- I. Ministry of Environment, Conservation and Parks,
- II. Lower Trent Conservation,
- III. Ontario Power Generation,
- IV. Hydro One,
- V. Parks Canada,
- VI. Hastings Prince Edward Counties Health Unit,
- VII. Bell Canada,
- VIII. Infrastructure Ontario,
- IX. Ministry of Transportation,
- X. Union Gas,
- XI. Technical Standards & Safety Authority,
- XII. Rogers Communications

Comments received from TSSA dated May 22, 2026 indicate that TSSA does not comment on zoning applications, and that the proposal would be outside of their fuels safety mandate.

Comments received from the Ministry of Transportation (MTO) dated June 1, 2026 indicate no concerns with the proposed Zoning By-law Amendment. MTO will review a future site plan control application to ensure it complies with all Ministry requirements.

Comments received from Lower Trent Conservation Authority, dated June 8, 2026 indicate that Lower Trent is not in a position to support the subject application as it is not consistent with *Policy 5.2* of the Provincial Planning Statement. At this time, the extent of the floodway has not been confirmed on site by an Ontario Land Surveyor (OLS). LTC would require a topographic base plan of the subject property if the applicant

wishes to proceed with technical work to determine if the proposal is able to demonstrate consistency with the natural hazard policies of the PPS. Further engineering work related to the Glen Miller Creek Floodplain may subsequently be required. Further technical information would also be required for LTC to review whether the proposal is able to conform with all other regulatory requirements.

To date, no further external comments have been received regarding this application.

3.3 Public Circulation

Notice of Application D09/T09/26 was circulated to all registered owners of land within 120 metres (400 feet) of the subject property and notice of the application was posted on the subject property on May 29, 2026.

To date, no public comments have been received regarding this application.

4.0 Planning Analysis

The purpose of this Zoning By-law Amendment is to rezone the subject lands from the Service Industrial (SM) Zone to the Service Industrial Exception 14 (SM-14) Zone, in order to permit a data centre on the subject property. In addition, this application also proposes to add a new definition to the City of Quinte West Zoning By-law for a data centre. It is recognized that the City's current Zoning By-law was adopted in 2014, and at that time data centres were not prevalent.

The establishment of new data centres in communities across Canada has prompted discussions around their environmental and community impacts. Based on staff's research, it appears that the primary concerns related to data centres pertain to operational noise, particularly from cooling systems and backup generators; water usage associated with certain cooling technologies; and the large amounts of electricity required to power and maintain the facilities.

In support of this application, the proponent has submitted a noise assessment prepared by BLK Consultants Ltd., dated May 14, 2026. However, in reviewing the noise assessment, staff identified that residences located on Glen Miller Road were not captured in the noise assessment and as such, the applicant is having the study updated to ensure that these residences are considered.

In addition, the owner's agent has indicated to staff that they intend to utilize a dry cooling system on-site, rather than using water to cool the data centre. Dry cooling

systems use ambient air, fans, and dry coolers (essentially large radiators-chillers) in a closed-loop system to dissipate heat. Dry cooling systems are generally preferred in more modern data centres. In terms of the demand for electricity, the owner's agent has been in communication with Hydro One to discuss the existing electrical grid's capacity. An email from Hydro One dated April 24, 2026 provided by the agent, Shawn Bouchard indicates that Hydro One has assigned the proposed facility a capacity of 8,000 kW.

From a land use compatibility perspective, the subject site appears to be generally well-suited for the proposed use given the industrial nature of the area, and the separation between the nearest residential uses. However, this Zoning By-law Amendment is only the first step in the development process. If this application were to be approved, the next step would be the submission of a Site Plan Control application, in which the technical components of the development would be reviewed in greater detail.

At this time, the applicant is working with Lower Trent Conservation Authority to determine floodplain elevations and what additional works may need to be done on site to ensure proper flood proofing.

Following the public meeting, Planning staff will consider all public comments, the input of various agencies and City Departments, as well as applicable planning policies. Staff will provide another report to the Planning Advisory Committee at a later date with a formal recommendation on the application.

Report written by,



Katie Whitehead, RPP, MCIP
Area Planner

Report reviewed by,



Kelly Weste, B.A.A., MCIP, RPP
Manager of Planning Services

Appendices/Attachments:

1. Schedule 'A'
2. Schedule 'B' Concept Plan/Preliminary Site Plan

Site
1" = 20'-0"

SCHEDULE B

